SERVICE AGREEMENT

PARTICULARS

SITA Contract ID	**2-00182702**		
Parties	**SITA**	Name	**SITA Switzerland Sarl**
		Address	10 Chemin de Blandonnet, 1214 Vernier, Switzerland
		Address for notices	As above with a copy to: legal.secretariat@sita.aero and: SITA - Chemin de Blandonnet 10, 1214 Vernier, Switzerland
		Attention	General Counsel
	Customer	Name	**Urgent Couriers Limited**
		Address	470 Parnell Road, Parnell, Auckland, New Zealand
		Address for notices	As above
		Attention	General Counsel
Recitals	A	SITA provides communications and information technology services and solutions to customers operating in the air transport industry around the world.	
	B	Customer has requested, and SITA has agreed to provide services under the terms and conditions of this Service Agreement and the terms and conditions of any Master Services Agreement governing this Service Agreement.	
Effective Date	The date on which the last of the parties to this Service Agreement signs it.		
Service(s)	**Worldtracer**		
Service Period	Initial period: **60 months**		
	Auto-renewal period: **12 months**		
	Notice period of non-renewal: **6 months**		
Governing Law	Singapore		
Place for Arbitration	Singapore		
Airport(s)/ Site(s)	**Multi**		
Relevant CPI	means the Consumer Price Index as published by the All-Urban Consumers in Atlanta, Georgia, United States of America		

The Parties agree as follows:

1. This Service Agreement comprises these Particulars and the following documents which are either attached to this Service Agreement or are incorporated by reference to the specified link (at which the terms and conditions are set forth in full and are available to save and print) and in either case form an integral part of this Service Agreement:

   A. General Terms and Conditions;

B. Service Schedules;

C. Pricing Schedule; and

D. any appendices, exhibits, links and/or attachments within any of the above unless otherwise specified.

2. In the event of conflict between the terms and conditions in the documents listed in paragraph 1 above, the document lower in the list shall prevail to the extent of the inconsistency.

3. A replacement Service Agreement, rather than an amendment agreement to vary this Service Agreement, may be required (at SITA's discretion) to effect any changes to the Service Agreement following its execution, including but not limited to Customer-requested additions to the Service(s) and any Service Period extension other than automatic renewal.

4. The parties acknowledge and agree to comply with trade sanctions, export controls, and embargo regulations under international laws, the laws and regulations of Switzerland, the United Kingdom, the United States, the European Union, and any other applicable jurisdictions, and administrative rulings of countries or relevant regulating authorities responsible for defining, enacting, and managing compliance with said laws and regulations.

5. The parties may sign this Service Agreement by electronic signature. If a party decides to sign using an electronic signature they agree that the electronic signature applied to this Service Agreement is authentic, has the same force and effect as a hand written signature and is applied by the signatory with the intent to be bound by the terms and conditions of this Service Agreement**.**

Signature of this Service Agreement by each party indicates agreement to the terms and conditions incorporated by reference.

Signed for and on behalf of **Customer** by its duly authorised representative:

Signature _____

Name _____

Title _____

Date _____

Signed for and on behalf of **SITA** by its duly authorised representative:

Signature _____

Name _____

Title _____

Date _____

GENERAL TERMS AND CONDITIONS

Version: 16 September 2024

0. Definitions and Interpretation

0.1. Definitions

The following words have these meanings in this Agreement:

Affiliate means, with respect to any person, any entity that directly or indirectly through one or more intermediaries Controls or is Controlled by such person or is under direct or indirect common Control with such person.

Agreement means the service agreement into which these terms are incorporated.

Charges means, in respect of a Service, the fees and charges to be paid by Customer for the provision of that Service, as set out in the Pricing Schedule or elsewhere in this Agreement.

Confidential Information means all information furnished or disclosed, in whatever form or medium, by the Discloser (or any of its Affiliates or Representatives) to the Recipient for the Agreement before, on or after the date of this Agreement relating to the business, technology or other affairs of the Discloser or any of its Affiliates. Confidential Information includes, without limitations, all of the trade secrets, trademarks, business plans, marketing plans, know-how, data, contracts, documents, business concepts, customer lists, customer data, costs, financial information, profits, billings, referral sources, existing or future services, products, operations, management, pricing, financial status, goals, strategies, objectives and agreements of the Discloser and any of its Affiliates, all of which is deemed confidential and proprietary, but does not include any information which the Recipient can demonstrate:

(a) was publicly available at the time of disclosure or later became publicly available through no act or omission of the Recipient; or

(b) was already lawfully in its possession at the time of disclosure; or

(c) was rightfully received by the Recipient from a third party without any obligation of confidentiality known to the Recipient; or

(d) was independently developed by or for the Recipient without use of the Discloser's Confidential Information.

Control means, in respect of an entity, the ability (whether it is legally enforceable or not) to control, whether directly or indirectly, the composition of the board of directors (or other governing body) of that entity, the voting rights of the majority of voting securities of the entity, or the management of the affairs of that entity.

Customer Data means the Confidential Information and Personal Data in data and files provided by or on Customer's behalf to SITA pursuant to this Agreement for the Service.

Data means information which: a) is being processed by means of equipment operating automatically in response to instructions given for that purpose; or b) is recorded with the intention that it should be processed by means of such equipment.

Discloser means the party disclosing Confidential Information.

Dispute means any dispute, controversy, difference or claim between the parties as to the construction of this Agreement, the rights or obligations of a party or any other matter arising out of or relating to this Agreement including any question regarding the existence, validity or termination of this Agreement (in whole or in part).

Effective Date means the effective date set out in the Particulars.

Force Majeure Event means an event which: (a) is beyond the reasonable control of the affected party and which the affected party cannot prevent or overcome; and (b) prevents total or partial performance of the obligation(s) of the affected party, and does not arise through the fault or negligence of the affected party.

GDPR means the General Data Protection Regulation (EU) 2016/679 and any national implementing laws, regulation(s) and secondary legislation.

Generated Data means the data generated by the usage of Service in connection with transformation of data and files, and transmission of data, including public information in messages such as flight schedules, routes, price and flight features, and excluding the Customer Data (and for the avoidance of doubt excluding Personal Data).

Government Agency means any governmental, quasi-governmental, administrative, fiscal, judicial or quasi-judicial body, department, commission, authority, tribunal, agency or entity.

IATA Clearing House means the division of the International Air Transport Association responsible for the clearance of accounts between member airlines and associate companies.

Insolvent means having an administrator appointed, being in receivership, in liquidation, in provisional liquidation, wound up, subject to any arrangement, assignment or composition, protected from creditors under any law, dissolved (other than to carry out a restructure while solvent) or being otherwise unable to pay debts when they fall due or anything with the same or similar effect in any jurisdiction.

Intellectual Property Rights means all intellectual property rights including current and future registered and unregistered rights in respect of copyright, designs, circuit layouts, trade marks, trade secrets, know-how, confidential information, patents, invention and discoveries and all other intellectual property as defined in article 2 of the convention establishing the World Intellectual Property Organisation 1967.

Particulars means the particulars section at the start of this Agreement.

Personal Data means any data defined as such in the applicable Privacy Laws.

Privacy Laws means legislation, rules and regulations relating to data protection, personal information and privacy in any and all jurisdictions in or from which SITA provides the Service or any part or parts thereof.

Pricing Schedule means the schedule with that title attached to this Agreement.

Recipient means the party receiving Confidential Information.

Relevant CPI means the index stipulated in either: (a) the Service Schedule; or (b) the Particulars section of this Agreement, or if none is specified, the published and generally accepted consumer price index (or equivalent) in the country which is the primary headquarter of the Customer. If both (a) and (b) apply then, for the avoidance of doubt, the Service Schedule in an Agreement has priority over the Particulars section.

Representative means an employee, agent, officer, director, auditor, adviser, partner, consultant, joint venture or sub-contractor, or any similar role or position.

Service means a service provided pursuant to this Agreement as detailed in any Service Schedule, which may also include the provision of any equipment and/or software.

Service Period means, in respect of a Service, the period during which SITA will supply that Service to Customer, as specified in the relevant Service Schedule.

Service Schedule means, in respect of a Service, the schedule with that title incorporated into this Agreement that sets out the particular description of that Service.

SITA means the member or, if relevant, each member of the SITA Group entering into this Agreement.

SITA Data means data supplied by SITA to Customer in relation to the Service excluding the Customer Data.

SITA Group means SITA SC, SITA NV and each of their Affiliates.

SITA NV means SITA N.V., registration number 34123203, having its registered office at Blaak 555, 3011 GB Rotterdam, Netherlands.

SITA SC means Société Internationale de Télécommunications Aéronautiques S.C., a Belgian cooperative society with limited liability, having its registered office at Avenue des Olympiades 2, B-1140 Evere, Belgium.

Term means the term of the Agreement as set out in clause 1.1.

UK GDPR means the United Kingdom General Data Protection Regulation, as it forms part of the law of England and Wales, Scotland and Northern Ireland by virtue of section 3 of the European Union (Withdrawal) Act 2018.

0.2. Interpretation. Unless the contrary intention appears, a reference in this Agreement to: (**variations or replacement**) a document (including this Agreement) includes any variation or replacement of it; (**singular includes plural**) the singular includes the plural and vice versa; (**person**) the word person includes an individual, a firm, a body corporate, a partnership, a joint venture, an unincorporated body or association, or any Government Agency; (**dollars**) United States dollars, dollars, US$ or $ is a reference to the lawful currency of the United States of America; (**calculation of time**) a period of time dating from a given day or the day of an act or event, is to be

calculated exclusive of that day; (**meaning not limited**) the words include, including, for example or such as when introducing an example, does not limit the meaning of the words to which the example relates to that example or examples of a similar kind; (**reference to anything**) anything (including any amount) is a reference to the whole and each part of it.

0.3. If an act under this Agreement to be done by a party on or by a given day is done after 5.30 pm on that day (based on the local time zone of the Customer's address indicated in this Agreement), it is taken to be done on the next day.

0.4. Headings are for convenience only and do not affect the interpretation of this Agreement.

1. Scope

1.1. This Agreement shall enter into force on the Effective Date and continue until terminated in accordance with its terms (**Term**).

1.2. SITA will provide the Service in consideration of Customer paying the Charges as specified in this Agreement.

1.3. SITA will make each Service available to the Customer for the relevant Service Period in the manner described in the Service Schedule. In order to use the Service, dependencies may apply as set out in this Agreement, Service Schedule and/or any other schedule appended to the Agreement. If the Services require interconnection with Customer systems, Customer will furnish, at Customer's sole expense, sufficient technical resources to enable the operation of the Service.

1.4. Customer further agrees that it shall not provide access to the Service to any third party by any direct or indirect means, unless otherwise permitted in the Service Schedule.

1.5. Customer acknowledges and agrees that SITA has no control over Customer's use of the Service, including (where applicable) the content of data transmitted through it by Customer or third parties, and agrees that Customer is solely responsible for the content of any data or information which it sends or receives using the Service. Without qualifying the previous sentence, Customer undertakes not to use the Service:

1.5.1. in a manner that, in the reasonable opinion of SITA, may adversely affect the efficiency, security or use of the Service by other SITA customers;

1.5.2. for an illegal purpose or in a manner that would cause SITA to be in breach of any law, local, national or international regulation;

1.5.3. to access any computer, network, or data of a person in any unauthorised manner, including attempting to:

(a) retrieve, alter or destroy data;

(b) probe, scan or test the vulnerability of a system or network; or

(c) breach or defeat any system or network security, authentication, authorisation, confidentiality, intrusion detection, monitoring, or other security measures;

1.5.4. to transmit, distribute, disseminate, publish, process or store any material that:

(a) violates any applicable law;

(b) infringes another person's rights, including Intellectual Property Rights;

(c) is defamatory, abusive, obscene, indecent, or harassing; or

(d) contains software viruses, trojan horses or any computer code, files or programs, designed to disrupt, destroy, invade, gain unauthorised access to, corrupt, observe or modify without authorisation, data, software, computing or network devices, or telecommunications equipment.

2. Pricing

2.1. The Charges are as set out in the Pricing Schedule or elsewhere in the Agreement.

2.2. Customer will pay to SITA the Charges in accordance with this Agreement. Notwithstanding anything in this Agreement to the contrary, with not less than one-month's prior written notice to Customer, SITA may increase the Charges relating to that Service once in each period of twelve (12) months in line with the annual positive unadjusted (i.e., not seasonally adjusted) percentage increase in the Relevant CPI. Notwithstanding anything to the contrary set out elsewhere in this Agreement, any notice to be given to Customer pursuant to this Clause may be delivered via email or posted on an online tool (e.g., SITA Billing portal).

2.3. SITA may commence invoicing the Charges for the Service in accordance with the Service Schedule or Pricing Schedule.

2.4. SITA may issue invoices electronically and such invoices shall be fully valid without a stamp or signature.

2.5. Subject to 2.6. below, SITA will invoice the Charges for the Service on a monthly basis.

2.6. At SITA's option, invoices for Charges incurred which are less than $500 per month will not be issued monthly; such invoices be issued when the accumulated invoice sum exceeds $500, save that Charges may always be invoiced by SITA at the end of each calendar year.

2.7. The Charges shall be paid by the Customer within thirty (30) days of the date of the SITA invoice.

2.8. Unless otherwise specified in this Agreement, Charges are expressed in United States dollars (US$). Customer must pay the Charges in the currency in which they are expressed in this Agreement, unless it is precluded to do so by law.

2.9. The Charges do not include any Taxes, including any Goods and Services Tax (GST) of any country, and Customer must pay all Taxes arising in respect of the Services and Charges under this Agreement (excluding taxes on SITA's income). In respect of withholding tax Customer agrees to pay such additional amounts as may be necessary, such that SITA receives the amount that it would have received had no withholding tax been imposed. "Taxes" means all taxes such as sales taxes, value added taxes, income tax, levies, imposts, charges and duties (including export, import, stamp and transactional duties), whether payable by withholding or otherwise, together with any interest, penalties, fines and expenses in connection with them, except if imposed on the net profit of a party.

2.10. If Customer:

2.10.1. is a member of IATA, then Customer must pay all Charges and any other amounts due to SITA under this Agreement in accordance with applicable regulations and current clearance procedures of the IATA Clearing House; or

2.10.2. is not a member of IATA, then Customer must pay all Charges and any other amounts due to SITA under this Agreement through direct debit, or, if direct debit is not available to the Customer as a method of payment, by bank transfer, in immediately cleared funds to SITA's nominated bank account or as otherwise directed by SITA from time to time.

2.11. If any sum payable under this Agreement is not paid by the Customer when such sum is due, that sum shall bear interest calculated from the date the sum is due until payment is made in full. The interest rate applicable is SOFR plus five percent (5%). "SOFR" means the 3-month CME TERM SOFR, being the "Secured Overnight Financing Rate" published by the US Federal Reserve Bank of New York, on a quarterly basis, or if that rate is no longer published for any reason, the industry accepted replacement rate. If such interest rate exceeds the maximum legal rate in the jurisdiction where the Customer is located, then the interest rate shall be reduced to such maximum legal rate and if such interest rate is lower than the highest prescribed rate allowed under law, that higher rate shall apply. In the event invoicing is in EUR, then SOFR is replaced by "EURIBOR". being the 3-month Euro Interbank Offered Rate published by the European Money Markets Institute, on a quarterly basis, or if that rate is no longer published for any reason, the industry accepted replacement rate.In the event invoicing is in any other currency, then SOFR is replaced by the interest rate of the central bank of the country of incorporation of the Customer, amended quarterly.

2.12. Customer may only make a claim that the Charges or any other amounts on an invoice for a Service are incorrect within six (6) months from the date of issue of the relevant SITA invoice.

2.13. Customer may not set off against any amount due for payment by Customer to SITA any amount owed by SITA to Customer, unless otherwise agreed in writing between SITA and Customer.

3. Confidentiality

3.1. The Recipient will use Discloser's Confidential Information only for the Agreement, and will make no use of the Discloser's Confidential Information, in whole or in part, for any other purposes.

3.2. The Recipient may not disclose Discloser's Confidential Information to any person except:

3.2.1. to its Representatives, Affiliates or Representatives of its Affiliates, who have a legitimate need to know such information; or

3.2.2. with the consent of the Discloser (which may be given or withheld in its absolute discretion); or

3.2.3. if the Recipient is required to do so by law or by a stock exchange; or

3.2.4. if the Recipient is required to do so in connection with legal proceedings relating to this Agreement.

3.3. A Recipient disclosing Confidential Information to persons under clause 3.2.1 must advise such persons of this Agreement and direct

them to treat Discloser's Confidential Information in accordance with the terms of this Agreement.

3.4. A Recipient disclosing Confidential Information in accordance with clause 3.2.3 must:

3.4.1. give the Discloser prompt written notice of such required disclosure in order to afford the Discloser an opportunity to seek a protective order or other legal remedy to prevent the disclosure;

3.4.2. reasonably cooperate with the Discloser's efforts to secure such a protective order or other legal remedy to prevent the disclosure; and

3.4.3. use reasonable efforts to resist disclosure until an appropriate protective order or other legal remedy to prevent the disclosure is obtained.

3.5. If, in the absence of a protective order or other legal remedy referred to in clause 3.4, the Recipient is legally required to disclose Discloser's Confidential Information, the Recipient may disclose such information without liability hereunder, provided that the disclosure is limited to only the Confidential Information specifically required to be disclosed.

3.6. Upon written request, to the extent consistent with law or professional obligation, the Recipient will return to the Discloser or destroy all Confidential Information in any form and promptly destroy any and all material or information derived from the Confidential Information, including any copies, except that one copy of the same may be retained for archival, professional and evidence purposes only.

3.7. Except as otherwise agreed or duly required by law or any regulatory authority, no party will disclose the terms of this Agreement to any person other than its and its Affiliates' Representatives (on a need to know basis).

3.8. The parties acknowledge and agree that the technical and other access information and details (including user identification details) in relation to the Service are SITA's Confidential Information.

3.9. SITA may make a public announcement, following contract signature, relating to the Customer contracting for a particular service described in this agreement. Where requested by Customer, SITA and the Customer will use reasonable efforts to develop a joint communications plan with regards to such public announcements relating to the products or services purchased by the Customer. Each party will use reasonable efforts to ensure that all press releases in connection with products or services described in this agreement will be consistent with any joint communications plan.

4. Privacy and Data Security

4.1. If Customer or its Affiliates have provided to SITA any Personal Data to enable SITA to provide a Service, SITA will:

4.1.1. use and/or hold such Personal Data for the purposes and in the manner directed by Customer and shall not otherwise modify, amend or alter the contents of such Personal Data;

4.1.2. not disclose or permit the disclosure of such Personal Data to any third party, unless specifically authorised in writing by Customer;

4.1.3. return to Customer or delete (if so requested by Customer) such Personal Data when requested by Customer or on termination or expiry of this Agreement (whichever occurs first).

4.2. Customer will ensure that any Personal Data provided to SITA as referred to in clause 4.1 immediately above shall have been lawfully obtained and is limited to such Personal Data as is strictly necessary for the purposes of the Services.

4.3. Where SITA is unable to perform an obligation under this Agreement without breaching the Privacy Laws, SITA will notify Customer, but will not be obliged to perform such obligation for as long as performance will breach the Privacy Laws.

4.4. For the purposes of data security, SITA will:

4.4.1. take appropriate technical and organisational measures to protect all data handled by it as a consequence of the Services against accidental or unlawful destruction or accidental loss, alterations, and unauthorised disclosure or access; and

4.4.2. use reasonable commercial endeavours to protect data from virus infection or third party intervention.

4.5. In addition to the above obligations in this clause 4, the parties agree that in the event of any processing in connection with the Services by SITA of Customer Personal Data that is governed by the GDPR, that:

4.5.1. SITA as a processor agrees and Customer as a controller instructs SITA, for the duration of the Services, to process such Personal Data pursuant to the obligations of data processors stipulated by Article 28 of the GDPR, as if those obligations were set out in writing herein in full;

4.5.2. SITA shall comply with clause 4.4 in relation to the security of such Personal Data.

4.5.3. The subject matter, nature and purpose of the processing is processing of Personal Data required for the provision of the Services, the data subjects are (1) airline passengers, travelers, and individuals booking tickets, and their personal data to be processed includes name, dob, nationality, passport details, financial details, email address, and airline ticket and baggage data; and (2) Customer staff and their personal data to be processed is that necessary for Customer to utilise the Services including staff names, and contact details.

4.5.4. Customer agrees SITA may disclose Personal Data to any third party to which SITA is permitted to sub-contract any element of the Services in accordance with clause 12.3 (a Sub-processor) to the extent such disclosure is necessary for such third party's provision of that element of the Services and provided that:

(a) SITA will have a written agreement in place with that Sub-processor which imposes obligations on the Sub-processor no less onerous than those set out in this clause 4.5.

(b) SITA will remain liable for the performance of such obligations by such third party.

4.5.5. Customer shall ensure that it will comply with its obligations under the GDPR in relation to its collection, processing and provision of Personal Data to SITA in connection with this Agreement, and that nothing required under the GDPR to be done by Customer as a controller prevents SITA from (and Customer consents to SITA) processing the Personal Data as necessary for the provision of the Services, and disclosing Personal Data to SITA's Sub-processors or Affiliates, or third parties authorised by Customer to receive the data, in connection with the Services.

4.6. The parties agree that, in the event of any transfer(s) by Customer or its Affiliates of Personal Data to SITA or its Affiliates located outside the European Economic Area, SITA will not transfer that Personal Data unless it ensures that it complies with the obligations set out in the GDPR (or, for transfers out of the UK, the UK GDPR) regarding the transfer of Personal Data to third countries or international organisations, such as through the use of standard contractual clauses adopted by the European Commission pursuant to Article 46 of the GDPR (and for transfers out of the UK, the addition of an addendum to such standard contractual clauses, as approved by the UK Information Commissioners Office), provided the conditions for the use of those standard contractual clauses are met, in which case the standard contractual clauses (and addendum in the case of transfers out of the UK), as set out at this link, apply to this Agreement, and the parties agree that the signing of this Agreement constitutes deemed signature and incorporation of those standard contractual clauses (and the appendices to same) as required: i) for controller to processor transfers: https://www.sita.aero/gdpr/scc/customers/module2; ii) for processor to processor transfers: https://www.sita.aero/gdpr/scc/customers/module3; and (iii) the addendum for transfers out of the UK: https://www.sita.aero/gdpr/scc/UKaddendum.

5. Intellectual Property

5.1. Customer acknowledges and agrees that all Intellectual Property Rights in the Service and other materials provided by SITA to Customer pursuant to this Agreement are either licensed to, or are the property of SITA, and nothing contained herein shall be deemed to convey any title or ownership interest therein to Customer. Customer's only right with respect to such Intellectual Property Rights is the right to use such Intellectual Property Rights in relation to the Service provided hereunder.

5.2. SITA owns and retains all right, title and interest in and to any Intellectual Property Rights which have been independently developed and/or acquired prior to, or during the performance of, this Agreement or as a result of the performance of its obligations hereunder. SITA shall own and retain all right, title and interest in and to any Intellectual Property Rights which will be independently developed and/or acquired during further product development and service additions or adjustments based on learnings and Customer inputs provided, during the provision of the Service under this Agreement.

6. SITA Data and Generated Data

6.1. Customer acknowledges and agrees that SITA owns all right, title and interest in and to the SITA Data and the Generated Data arising in any manner and form during provision of the Service and during the processing of Customer Data.

6.2. Subject to SITA's compliance with all applicable laws, Customer agrees that SITA shall be entitled to:

6.2.1. use, process, aggregate, compile, exploit, disclose, combine, create derivative works using the aggregated Generated Data; and/or

6.2.2. conduct data mining, data gathering or data extraction in relation to such Generated Data for any business or commercial purpose, including:

(a) enhancement of the Service or other services;

(b) combining such data with SITA's other customer's derived usage data for the purposes of SITA's reporting, which may consist of analytics, compilations of aggregated statistics about SITA's services, or industry trends, and which may be provided to customers, potential customers or the general public (but will in no case include Personal Data received by SITA); and/or

(c) provision of Generated Data and/or new services to third parties.

7. Representations and Warranties

7.1. Each party warrants and represents to the other that:

7.1.1. it has the right, power and authority to enter into this Agreement and to perform its obligations under this Agreement; and

7.1.2. all corporate and other action required to authorise the execution of this Agreement and its performance has been duly taken.

7.2. The Customer warrants that its procedures and the decision to appoint SITA to perform the Agreement as the supplier of the Service complies with all relevant laws, regulations and any applicable guidelines.

7.3. Exclusion of Implied Warranties. SITA makes no guarantees, warranties or representations whatsoever about adequacy or fitness for purpose of the Service or otherwise.

7.4. The Customer represents and warrants that it has and will maintain all appropriate consents and will make all necessary disclosures to all owners of Personal Data, sensitive Personal Data, personally identifiable information and/or sensitive personal information in relation to the Customer Data.

7.5. Despite anything in this Agreement to the contrary, SITA shall not be obliged to perform the Agreement if:

7.5.1. Customer breaches one or more of its obligations specified herein or if Customer otherwise prevents or impedes the performance of the Agreement;

7.5.2. there is a legislative or regulatory change that, in SITA's opinion, could prevent or impede SITA's ability to perform the Agreement and/or provide the Service; or

7.5.3. the provision of the Service causes a breach or is likely to cause a breach of Privacy Laws.

7.6. Customer will review any information and Data supplied by SITA to Customer as part of or as a result of the performance of Service. Customer agrees and acknowledges that it is solely responsible for checking and verifying any such information and Data in accordance with:

7.6.1. Customer's own experience and independent knowledge;

7.6.2. Customer's internal security procedures and processes; and

7.6.3. good security practices.

7.7. Where applicable, Customer agrees that SITA has no liability or responsibility regarding the use of messages delivered by the Service by the Customer or anyone else.

7.8. Customer is solely responsible and liable for:

7.8.1. anything done by Customer (or anyone else acting on Customer's behalf or with Customer's permission) in relation to the Service (including any equipment and/or software provided as part of the Service) or any Data;

7.8.2. the use of and reliance on the Service or any Data; and

7.8.3. decisions taken by, evaluations made by, or any acts or omissions of Customer (or anyone else acting on Customer's behalf or with Customer's permission) as a result of the provision of the Service or any Data.

7.9. Customer will not use the Service in violation of any applicable local, national, or international law or regulation.

7.10. The Customer must perform its own PCI DSS security review for all cardholder data environments controlled by the Customer in order to achieve PCI DSS compliance validation for its own end-to-end operations.

8. Limitation of Liability and Legal Terms

8.1. NOTHING IN THIS AGREEMENT OPERATES TO LIMIT OR EXCLUDE A PARTY'S LIABILITY:

8.1.1. THAT CANNOT BE LIMITED OR EXCLUDED BY LAW;

8.1.2. FOR ITS UNLAWFUL OR FRAUDULENT ACTS OR OMISSIONS; OR

8.1.3. IN RESPECT OF THE INDEMNITY UNDER CLAUSE 9 OF THIS AGREEMENT.

8.2. SITA'S TOTAL AGGREGATE LIABILITY IN RESPECT OF ALL OTHER CLAIMS, LOSSES OR DAMAGES, WHETHER ARISING FROM TORT (INCLUDING NEGLIGENCE), BREACH OF CONTRACT OR OTHERWISE UNDER OR IN CONNECTION WITH THIS AGREEMENT, SHALL IN NO EVENT EXCEED THE AGGREGATE SUM PAID BY THE CUSTOMER TO SITA FOR THE SERVICE IN THE PRIOR 12 MONTH PERIOD.

8.3. NEITHER PARTY WILL BE LIABLE TO THE OTHER PARTY OR ITS AFFILIATES FOR ANY:

8.3.1. LOSS OR CORRUPTION OF DATA;

8.3.2. LOSS OF ANTICIPATED BUSINESS OPPORTUNITIES, REVENUES, PROFITS OR SAVINGS;

8.3.3. DAMAGE TO GOODWILL OR REPUTATION; OR

8.3.4. INDIRECT, SPECIAL OR CONSEQUENTIAL LOSS OR DAMAGE,

ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, WHETHER FOR BREACH OF CONTRACT, IN TORT (INCLUDING NEGLIGENCE), UNDER STATUTE OR ANY OTHER LAW.

9. Indemnities

9.1. If during the provision of the Service a person alleges that the Customer's use of such Service in accordance with this Agreement is an infringement of that person's Intellectual Property Rights (such allegation, an "**IP Claim**"), Customer will without undue delay notify SITA in writing of such alleged IP Claim. Following such notification, SITA may (at SITA's option):

9.1.1. procure the right for Customer to continue using the Service (or the infringing part of it);

9.1.2. replace or modify that Service (or the infringing part of it) so that it becomes non-infringing; or

9.1.3. repay to Customer any Charges which Customer has paid to SITA under this Agreement in respect of the Service (or the infringing part of it) to which the IP Claim relates in the calendar year that the IP Claim arose and terminate the provision of the Service (or the infringing part of it).

9.2. If SITA's actions referred to in clause 9.1 are insufficient to prevent loss or damage occurring to Customer, SITA will indemnify Customer against any damages, costs and expenses (including legal expenses) finally awarded against Customer by a court or arbitral tribunal in respect of the IP Claim, provided that Customer:

9.2.1. makes no admission in relation to the IP Claim or any statement that is prejudicial to or otherwise impacts on the defence or settlement of the IP Claim;

9.2.2. authorises SITA to conduct the defence or any related settlement of the IP Claim on Customer' behalf (SITA will do so at its expense);

9.2.3. provides SITA with all assistance and information reasonably required by SITA to enable SITA to conduct the defence or settle the IP Claim; and

9.2.4. does all things reasonable to mitigate any damage and loss arising from the IP Claim.

9.3. The indemnity in clause 9.1 will not apply where the IP Claim results from or relates to:

9.3.1. any modification, adaptation or development of a Service or any part thereof (including any supplied equipment or software) not made by or on behalf of SITA;

9.3.2. any combination or use of a Service or any part thereof (including any supplied equipment or software) with any item or in a manner not authorised by this Agreement or by SITA;

9.3.3. failure by Customer to use the latest version, or a replacement or modification of a Service (or the infringing part of it), which was offered by SITA;

9.3.4. any breach by Customer of its obligations under this Agreement;

9.3.5. actions taken by SITA at the specific request of Customer (for example complying with specifications provided by Customer); or

9.3.6. any third party-manufactured Equipment or third party proprietary or open source Software or software code, save that SITA will provide Customer with the benefit of any indemnity provided to SITA from a third party in relation to a third party-manufactured equipment and third party proprietary or open source software or software code.

9.4. The remedies set out in this clause 9 are Customer's sole and exclusive remedies with respect to IP Claims.

9.5. On an ongoing basis Customer indemnifies SITA and holds it harmless against any loss, expense, damage suffered or action, claim or demand by any third party arising from or in relation to:

9.5.1. anything which is the responsibility of Customer, including anything which Customer is responsible for or obliged pursuant to this Agreement;

9.5.2. a claim by any person, including a third party, that use by SITA of any Personal Data provided by Customer to SITA in accordance with this Agreement infringes the privacy of any person or breaches any Privacy Laws; or

9.5.3. a breach by Customer of any material representation or warranty given by it in this Agreement.

10. Termination & Suspension of Service

10.1. Either party may immediately terminate this Agreement by notice to the other party, if the other party commits any material breach, non-observance or non-performance of a material obligations in this Agreement.

10.2. SITA may limit, suspend or cancel a Service at any time with or without prior notice to Customer if, in SITA's sole opinion: there is an event of emergency; the supply or use of a Service is or will become unlawful; any permit or approval required for the Service to operate is or will be withdrawn; there is an actual or threatened claim against the Intellectual Property of the Service; or the provision of a Service is liable to cause or result in death or personal injury or damage to property.

10.3. Without qualifying or limiting clause 10.2, SITA may limit or suspend the provision of a Service at any time on fourteen (14) days written notice to Customer if Customer:

10.3.1. fails to pay the Charges or any other amounts due to SITA under this Agreement for that Service when due (except where Customer has disputed them in good faith within the specified time period);

10.3.2. breaches any of its obligations under this Agreement; or

10.3.3. becomes Insolvent.

10.4. Where provision of a Service has been limited or suspended by SITA due to circumstances referred to in clause 10.3, if such circumstances later cease to exist or are remedied by Customer, then Customer:

10.4.1. may request SITA to commence re-supplying (or re-supplying in full) the relevant Service; and

10.4.2. agrees to pay at SITA's option either:

(a) any re-activation and/or installation fees in relation to the commencement of the re-supply (or the re-supply in full) of the Service; or

(b) if the Service has remained configured, provisioned, equipped, installed or similar, all Charges due to SITA for the period of service limitation or suspension, save that such Charges shall not exceed the equivalent of four (4) months Charges for the Services, which SITA will invoice.

10.5. Each party may terminate this Agreement, on thirty (30) days written notice to the other party, when the Service Periods of all Services have expired.

10.6. Upon conclusion or termination of the Agreement for any reason:

10.6.1. SITA shall provide reasonable migration assistance for a period of 30 days at no additional charge;

10.6.2. SITA shall destroy, delete or return (at SITA's option) any of the Cusomer's Confidential Information relating to the Service; and

10.6.3. Customer shall immediately cease all use of the Service and anything else provided by SITA pursuant to this Agreement together with any related documentation and materials (whether specified or not in this Agreement) and destroy, delete or return (at Customer's option) to SITA all such documentation and materials, including all materials and documentation provided with, generated by, or descriptive of the Service including all hardware, object code listings, source code listings, machine code translations, functional specifications, service specifications, user manual, screen dumps or reproductions, software printouts and any SITA Confidential Information relating to the Service.

10.7. The following clauses survive termination or expiry of this Agreement: clause 0 (Definitions), clause 3 (Confidentiality), clause 8 (Liability), clause 9 (Indemnities), this clause 10 (Termination), clause 12 (General) and clause 13 (Dispute Resolution), as well as any other clause, which by its nature is intended to survive such termination.

11. Notices

11.1. Any notices or consents given by a party in connection with this Agreement must be made in writing and sent by courier to the other party's address for notices specified in this Agreement.

12. General

12.1. This Agreement and any disputes or claims arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) are governed by the law in force in the place specified in the Particulars.

12.2. **Export Laws**

12.2.1. Customer acknowledges and agrees that any equipment, the software and any technical data and information provided by SITA as part of a Service ("**Materials**") as well as a Service itself and payment routes may be subject to sanctions, export controls and embargo regulations under international laws, the laws and regulations of Switzerland, the United Kingdom, the United States of America, the European Union, and any other applicable jurisdictions, and administrative rulings of countries or relevant regulating authorities responsible for defining, enacting, and managing compliance with said laws and regulations ("**Sanctions and Export Laws**"). In the exercise of its rights and the performance of its obligations under this Agreement, each Party agrees that it will comply with such applicable Sanctions and Export Laws, and will not directly or indirectly, export, re-export, sell, supply, transfer (even in-country), divert, release or disclose any Materials to any person, entity, country or territory prohibited by any Sanctions and Export Laws, such as notably to or for use in Belarus, the Russian Federation, or to any prohibited end-uses and end-users, without first obtaining all authorisation(s), license(s), etc. from the relevant national authorities of the state(s) imposing such restrictions, notably from the U.S. Department of Commerce and/or from the U.S. Department of Treasury. If relevant, Customer shall communicate such authorisation or export or use license to SITA.

12.2.2. If such Sanctions and Export Laws prevents or limits SITA's ability to provide a Service, SITA, may in its sole discretion terminate the relevant contract and the respective service immediately, and SITA will notify Customer in writing or in accordance with the normal notice way as per the contract. In this instance, Customer:

(a) must immediately cease using the Service as of the date of SITA's notice; and

(b) agrees that SITA may immediately terminate the relevant Service and the Agreement without penalty.

12.2.3. If the Sanctions and Export Laws referred to in clause 12.2.1 change or are replaced in a way that the limitations contained in that clause no longer apply, and if the Agreement is not terminated, then Customer:

(c) may request SITA to commence re-supplying the relevant Service under this Services Agreement; and

(d) agrees to pay any re-activation and installation fees in relation to the commencement of the re-supply of the Service.

12.3. **Subcontracting**

12.3.1. SITA may, at its own discretion, subcontract all or part of the Service.

12.4. **Assignment**

12.4.1. A party will not assign, transfer or otherwise deal with any of its rights or obligations under this Agreement without the prior written consent of the other party (such consent not to be unreasonably withheld or delayed). Despite the foregoing, SITA may novate or transfer this Agreement or assign its rights under this Agreement to a member of the SITA Group on notice to Customer. In this instance, Customer consents to such novation, transfer or assignment by SITA and agrees to execute all documents necessary to give effect to the assignment or novation by SITA referred to in the foregoing sentence.

12.5. **Force Majeure**

12.5.1. If a party is unable to perform or is delayed in performing an obligation under this Agreement because of a Force Majeure Event, then: that obligation is suspended but only so far and for so long as it is affected by the Force Majeure Event; and the party affected by the Force Majeure Event will not be liable for delay or failure to perform any of its obligations in this Agreement (including if applicable in respect of Service Levels).

12.5.2. If a Force Majeure Event occurs, the non-performing party must: promptly give the other party notice of the event and an estimate of the non-performance and delay; take all reasonable steps to overcome the effects of the event (but this does not require the settlement of industrial disputes or other claims on unreasonable terms); and resume

compliance as soon as practicable after the event no longer affects the party.

12.5.3. Neither party will have the right to claim or receive damages for any delay or non-performance of obligations by the other party resulting from a Force Majeure Event. If a delay or failure to perform any party's obligations due to a Force Majeure Event exceeds 30 days, the party not affected by the Force Majeure Event may terminate this Agreement in whole or with respect to the affected Service only (as relevant) with notice to the other party.

12.5.4. The Parties acknowledge that the following events will constitute Force Majeure Events for the purposes of this Agreement, provided all other conditions contained in the definition of Force Majeure Event are also met: any failure of a party to lease or obtain services or equipment necessary to provide or receive the Service, including any local access lines, local access line equipment or other equipment; any failure or non-performance by a telecommunications operator or a third party service provider to Customer.

12.5.5. The parties acknowledge that the delay or withdrawal of any permit or approval that prevents or limits SITA's ability to provide a Service (or element of a Service) and/or Customer's ability to receive or use such Service (or element of a Service) will constitute a Force Majeure Event for the purposes of this Agreement, provided all other conditions contained in the definition of Force Majeure Event are also met.

12.6. **Severability**

12.6.1. If the whole or any part of a provision of this Agreement is void, unenforceable or illegal in a jurisdiction, it is severed for that jurisdiction, except if such severance alters the basic nature of this Agreement or is contrary to public policy.

12.7. **Entire Agreement**

12.7.1. This Agreement constitutes the entire agreement between the parties relating to its subject matter and supersedes all prior understandings, arrangements and agreements between the parties in this respect.

12.7.2. This Agreement may be executed in counterparts. All counterparts, when taken together, will constitute one instrument.

13. Dispute Resolution

13.1. If a Dispute arises, then the parties will use all reasonable endeavours to settle the dispute as quickly as possible.

13.2. Unless a party has complied with clauses 13.3 to 13.5, that party may not commence court proceedings relating to the Dispute except where that party seeks urgent interim or interlocutory relief.

13.3. Any party claiming that a Dispute has arisen may give a written notice (Dispute Notice) to the other party. The Dispute Notice must:

13.3.1. identify the party's representative for negotiations relating to the Dispute, being a person with authority to settle the Dispute on behalf of that Party; and

13.3.2. set out succinctly the issues the subject of the Dispute and, with relevant particulars, a description of the circumstances giving rise to the Dispute and the relief sought including, to the extent possible, the amount claimed.

13.4. The recipient of the Dispute Notice must within 14 days of receipt of the Dispute Notice reply in writing to the other party ("**Reply"**). The Reply must:

13.4.1. identify the recipient's representative for negotiations relating to the Dispute, being a person with authority to settle the Dispute on behalf of the recipient; and

13.4.2. set out succinctly the recipient's response to the matters set out in the Dispute Notice and any additional matters the recipient considers relevant.

If the recipient of the Dispute Notice does not provide the above reply within fourteen (14) days, the party claiming that a Dispute has arisen may, at any time thereafter, refer the matter for resolution in accordance with Clause 13.6 below (i.e. the party claiming that a Dispute has arisen may commence Arbitration proceedings).

13.5. The representatives designated under clauses 13.3 and 13.4 will make whatever investigations each considers appropriate and, within 60 days of receipt of the Reply, use their reasonable endeavours to resolve the dispute on a "without prejudice" basis.

13.6. Arbitration. If the Dispute is not resolved within the period of time specified in clause 13.5, then the parties agree to refer and finally resolve the Dispute in front of a single arbitrator under the rules of arbitration of the International Chamber of Commerce (ICC). The parties will request that institution to endeavour to appoint an arbitrator with communications, IT or other appropriate technological expertise. The arbitration will take place in the place specified in the Particulars.

End of General Terms and Conditions

Schedule 1– Service Schedule for SITA WorldTracer Bag Delivery Service – Interface (Courier)

Version 130525

PART A – SERVICE

Definitions

The following words have these meanings in this Schedule:

API means Advanced Programming Interface for this Service.

Client means an airline, agent or ground handler with which Customer has a Delivery Contract.

BDO means a baggage delivery order, which is an output of SITA's WorldTracer service subscribed to by Customer's Client and provided by that Client to Customer under the terms of the Delivery Contract.

Delivery Contract means contract between Customer and Client for the provision of baggage delivery courier services by Customer to the Client.

IP Address means an Internet protocol address, a numerical label assigned to each cloud virtual or physical device participating in a computer network that uses the Internet protocol for communication.

Problem means an unknown underlying cause of one or more Incidents.

Service means the service described in paragraph 0 of Part A of this Schedule.

SITA Data Center refers to the network of SITA data centres deployed globally that host the physical and virtual infrastructure to deliver the Service. Applicable datacentres for the Service are listed in Appendix 1.

URL means Uniform Resource Locator.

WorldTracer means a SITA service being a centrally managed tracing and matching service that enables airlines, agents and ground handlers to trace lost and found luggage across the world.

Service Description

13.7. Service Overview

13.7.1. SITA **WorldTracer Bag Delivery Service Interface (Courier)** is a module (reference number 25060) within WorldTracer product (reference number 32806). It is a programming API provided by SITA via web services to the WorldTracer application over a Customer-provided secured Internet connection. It provides a service interface that allows Customer to design and adapt its own solutions to meet its unique and evolving requirements relating to automation of the exchange and processing of airline baggage tracking data with its Client(s). The API enables Customer to use its own systems and applications to manage and track its baggage delivery process using the WorldTracer BDO data it receives from its Client available to its delivery drivers and enabling Client's WorldTracer service to be updated with real-time information about delivery status.

13.7.2. Delivered over the standard connection to the internet provided by Customer.

13.7.3. The Service consists of standard features set out in paragraph 13.8 of Part A of this Schedule.

13.7.4. A detailed description of the Service is contained in the Specification, a copy of which is available on request.

13.8. Standard Features

13.8.1. The Service leverages data outputs from SITA WorldTracer modules and services subscribed to by Customer's Client.

13.8.2. The Service is aimed at baggage delivery companies. It can be used in any airport location as long as the service dependencies are met.

13.8.3. As part of the Service, SITA will provide:

13.8.3.1. Updated API specifications of the Service;

13.8.3.2. Access to relevant BDOs, subject to Customer procuring its Client(s) prior documented consent (e.g. through the Client's configuration settings within the WorldTracer service) for SITA to make such data available to Customer;

13.8.3.3. Access to update the relevant WorldTracer records, subject to Customer procuring its Client(s) prior documented consent (e.g. through the Client's configuration settings within the WorldTracer service) for Customer to update that Client's WorldTracer records.

13.8.4. The Service does not include:

13.8.4.1. Any software component, other than the API.

13.8.4.2. any desktop component, smartphone or tablet unit or operating system;

13.8.4.3. any peripherals or equipment and/or consumable items such as bag tags;

13.8.4.4. the provision of connectivity from the Customer Sites to the SITA Data Center;

13.8.4.5. the installation and configuration of software components; and/or

13.8.4.6. any WorldTracer module or service.

Service Dependencies

13.9. In order to enable implementation and/or use of this Service, Customer shall (at its own cost and expense):

13.9.1. Ensure Customer's system interfacing with the Service has been adapted to the API specification as provided by SITA.

13.9.2. Ensure each Client subscribes to SITA's WorldTracer service for the creation of BDOs and each such Client has the requisite consents or other lawful basis to provide Customer with the Personal Data contained in such BDOs or any other data packet; and

13.9.3. Obtain, install and maintain data links and associated data transmission equipment as may be necessary to link Customer to the Service and afford it access to the Service.

Service Conditions

13.10. Service Period

13.10.1. The Service Period of the Service begins on the date when SITA makes the Service available for use by Customer and continues for an initial period of 60 months.

13.10.2. The Service Period of the Service will automatically renew for further periods of 12 months, unless a party gives to the other party a 6 months' notice prior to the expiry of the initial or then current renewal period that it does not wish to renew the Service Period.

13.11. General Customer Obligations

13.11.1. Customer will:

13.11.1.1. ensure that any content or software hosted through the Service is owned by, licensed to or otherwise lawfully obtained by Customer and does not violate the law, nor infringes or misappropriates the rights of any person;

13.11.1.2. provide, on request, information, documents or other materials to verify its compliance with its obligations with regards to the use of the Service contained in this Schedule and the Service Agreement;

13.11.1.3. remove any Customer content or software hosted through the Service and terminate any other use made of the Service, in breach of this Schedule or any term of the Service Agreement;

13.11.1.4. cooperate to identify the source of any Problem with the Service, which is reasonably believed to be attributable to the hosting of any Customer content or software or any other use of the Service made by Customer;

13.11.1.5. communicate any substantial change in its capacity requirements for the Service;

13.11.1.6. at the termination of the Service, relinquish use of the public IP Addresses and server names assigned to Customer in conjunction with the Service, including directing the Customer's Domain Name Service away from the Service.

13.11.2. In case of Customer breaching its obligations under paragraphs 13.11.1.1 – 13.11.1.6 of Part A of this Schedule, the Service may be suspended or terminated with or without notice and Customer content or software removed.

13.11.3. Customer is responsible for implementing a back-up solution for all Customer Data.

13.12. Data Protection

13.12.1. The Service is provided by SITA acting as a data processor for the purposes of any applicable Privacy Laws.

13.12.2. Customer shall, with respect to all data provided by the Customer (and any person on its behalf) in its use of the Service, be responsible for the accuracy and, where so required by the nature of the Service, the management of that data, and shall ensure that all Personal Data has been lawfully obtained and is limited to such data as is specifically required for the purposes of the Service.

13.12.3. Customer authorises SITA to permit the disclosure of Personal Data in the BDOs (or in any other format) that the Customer provides in its use of the Service to Customer-nominated delivery drivers as part of the Service.

13.12.4. Customer is responsible for ensuring compliance with Privacy Laws by the Customer-nominated delivery drivers.

13.13. Use of Service by handling agents

When Customer is using the Service as an agent for an airline or Client, the Customer agrees that it will ensure that such airlines or Clients are advised (and are kept advised) in relation to all instances and locations of data storage for output data from the Service, regarding each airline's or Client's data. This applies for every file assigned to the Customer by the airline or Client. For the avoidance of doubt, SITA

shall have no responsibility or liability for data handling, transfer and storage arrangements (including security) in relation to Service data controlled by an airline or Client or the Customer that is sent to a handling agent (as Customer) at an airline's or Client's direction, or under an agent authority.

13.14. Use of the Service

13.14.1. SITA provides the Service to Customer on the condition that Customer has no right to give, sell, or in any other manner make the Service or the information provided in accordance with the Service Agreement available to any third party without the prior written consent of SITA.

13.14.2. Customer acknowledges and agrees that SITA has no control over Customer's use of the Service, including the content of data transmitted through a Service by Customer or third parties, and agrees that Customer is solely responsible for the content of any data or information which it sends or receives using the Service.

13.14.3. Without qualifying clause 13.14.2 above, Customer undertakes not to use the Service:

13.14.3.1. in a manner that, in the reasonable opinion of SITA, may adversely affect the efficiency, security or use of the Service by other SITA customers;

13.14.3.2. for an illegal purpose or in a manner that would cause SITA to be in breach of any law, local, national or international regulation;

13.14.3.3. to access any computer, network, or data of a person in any unauthorised manner, including attempting to:

13.14.3.4. to retrieve, alter or destroy data;

13.14.3.5. to probe, scan or test the vulnerability of a system or network; or

13.14.3.6. to breach or defeat any system or network security, authentication, authorisation, confidentiality, intrusion detection, monitoring, or other security measures;

13.14.3.7. to transmit, distribute, disseminate, publish, process or store any material that:

13.14.3.8. in violation of any applicable law;

13.14.3.9. in any way that infringes another person's rights, including intellectual property rights;

13.14.3.10. in any way that is defamatory, abusive, obscene, indecent, or harassing;

13.14.3.11. in any way that introduces software viruses, trojan horses or any computer code, files or programs, designed to disrupt, destroy, invade, gain unauthorised access to, corrupt, observe; or

13.14.3.12. in any way that modifies without authorisation, data, software, computing or network devices, or telecommunications equipment.

13.14.4. Customer may only use data extracted using the Service for the purpose of fulfilling the Delivery Contract. No other use is permitted.

13.14.5. The Service returns a payload which is standard text key/value pairs.

13.14.6. SITA is not responsible for information that is not available in the data source. Fields not available in the response will be omitted.

13.14.7. Neither SITA nor SITA's licensors endorses or guarantees the accuracy of the data extracted using the Service and all use is at Customer's sole risk. Data from the Service

is supplied from various airline(s). Relevant trademarks are proprietary to the relevant airlines.

13.14.8. The Service's databases may not be provided to third parties or used to create derivate works.

13.14.9. SITA reserves the right to change, update or deprecate the Service at any time. In such cases, Customer will be given ample notification by email.

13.14.10. The Service API keys and certificates are used when calling (invoking) the Service API to authenticate the Service API call.

13.14.11. The Service API key and certificate is used by SITA for tracking the Service usage which is used for billing, health monitoring, data analytics to drive service improvement, innovation, security and reporting purposes.

13.14.12. SITA reserves the right to monitor the Service to identify any accidental or malicious abuse of the Service including flooding, unlawful use of data, introduction of malware or viruses, reverse engineering the Service for malicious purposes, and other disruptive and illegal practices.

13.14.13. SITA, in its sole discretion, reserves the right to temporarily or permanently suspend Customer's access to the Service if Customer breaches any terms and conditions of the Service Agreement, or if Customer's use of the Service causes any disruption to the Service or SITA's servers. In such circumstances, SITA may terminate the Service Agreement in accordance with the provisions set out in this Schedule and/or the Service Agreement.

13.14.14. SITA, SITA Affiliates and its licensors own the intellectual property rights and usage rights in the Service and data consumed, generated or derived and Customer is licensed use the Service and such data solely for the purposes described in the Service Agreement

13.14.15. Customer does not have the right to sublicense the Service for use by a third party.

13.14.16. Customer may not redistribute the data to third parties via a derivative service as part of a commercial enterprise.

13.15. Indemnity

Customer agrees to indemnify and hold SITA, its employees, directors, officers and agents harmless from and against any and all claims, demands, liabilities, losses, costs, damages and expenses of any nature whatsoever (including, without limitation, the cost of investigating and defending any law suit or other legal proceeding and any attorney's fees and expenses incurred in connection therewith) claimed from or asserted against SITA by any person or persons as a result of or in connection with any: i) claim, demand, action or proceedings made against SITA; ii) loss or damage to property; and/or iii) any illness, disability, mental anguish or bodily injury, including death, of any person whomsoever, in each case consequent upon or arising from or out of:

13.15.1. The performance, non-performance or partial or imperfect performance of the Service or any other obligation hereunder by SITA, its employees, agents or suppliers; and/or

13.15.2. The use by Customer of the Service.

13.16. Standard of Service

Notwithstanding the limitation of liability set out in paragraph 13.23 of this Schedule, SITA shall make every reasonable effort, without delay, to ensure that the standard of the Service is in

accordance with the Service Agreement and to perform all its obligations under or pursuant to the Service Agreement.

13.17. Ethics

The Customer acknowledges and agrees that the SITA Ethics Charter (Charter) applies to the Service. The Charter is available at this link: https://www.sita.aero/globalassets/docs/other/ethics/sita-at-borders-ethics-charter.pdf

13.18. Language

Unless otherwise agreed by the Parties in writing, the Service, documentation and all communication (written and verbal) about the Service shall be in the English language. This includes, but is not limited to, any deliverables, training, reports, on-line help and custom fields.

13.19. End-of-Life (EoL) Policy

The SITA Managed Services EOL Policy applies to the Service. This policy is available at the following link (where it is set forth in full and is available to save and print) and is incorporated into this Service Schedule by reference: https://www.sita.aero/globalassets/docs/other/eol/managed-service-eol-policy-120218.pdf

13.20. Operational Improvements

SITA and the Customer agree that all data received by SITA from (or on behalf of) Customer may be anonymized and aggregated by SITA for research and analytics for service improvement, operational efficiency and security. This provision is subject to all other parts of the Agreement, and SITA shall at all times comply with its obligations under the Agreement and under all applicable laws and follow best practices for research.

13.21. Unauthorised Use and Re-supply

The Service cannot be used for, or re-supplied to, other parties unless explicitly agreed by SITA. Customer agrees that it shall not in any circumstances use the Service for, or re-supply the Service to, United States “black-listed” parties, being US “SDGTs” – Specially Designated Global Terrorists. The Customer acknowledges that such use of the Service for, or re-supply of the Service to, US SDGTs may result in termination of the Service immediately.

13.22. Inflation Correction of Charges

SITA may increase the Charges relating to the Service once in each period of twelve (12) months in line with the percentage increase in the Relevant CPI. The Relevant CPI for the Service shall be the Consumer Price Index – All Urban Consumers in Atlanta, Georgia, United States of America, as published by the Bureau of Labour Statistics of the United States.

13.23. Termination

On termination of Service (in whole or as to specific Service Module(s) only) before the end of its Service Period for any reason, except due to SITA’s default, SITA shall be entitled to charge Customer the subscription fees for the unexpired portion of the Service Period (Termination Charge).

13.24. **Disclaimer**

13.24.1. THERE IS NO WARRANTY THAT THE SERVICE, USED EITHER ALONE OR IN CONJUNCTION WITH OTHER SECURITY SERVICES, WILL PROVIDE A COMPLETELY ADEQUATE PLATFORM TO FULLY PROTECT THE CUSTOMER’S INFRASTRUCTURE OR DATA.

13.24.2. SITA WILL ONLY BE ABLE TO PROVIDE THE SERVICE TO THE CUSTOMER IF CUSTOMER’S CLIENT PERMITS CUSTOMER BDO ACCESS. TO ENABLE BDO

ACCESS, CUSTOMER SHALL CONTACT THE RELEVANT CLIENT DIRECTLY. CUSTOMER ACKNOWLEDGES AND AGREES THAT SITA ASSUMES NO LIABILITY OR RESPONSIBILITY FOR THE IMPACT ON THE PERFORMANCE OF THE SERVICES WHERE I) THE CLIENT REFUSES (IN WHOLE OR IN PART) TO PROVIDE BDO ACCESS TO CUSTOMER; AND II) THE CLIENT CONTRACT WITH SITA EXPIRES OR TERMINATES.

13.24.3. EXCEPT TO THE EXTENT NOT PERMITTED AT LAW, SITA SHALL NOT BE LIABLE FOR ANY SERVICES FAILURES OR LOSS TO CUSTOMER CAUSED BY CUSTOMER'S FAILURE TO PERFORM/COMPLY WITH (AS APPLICABLE) THE SERVICE DEPENDENCIES LISTED IN PARAGRAPH 0. (SERVICE DEPENDENCIES) OF PART A OF THIS SCHEDULE AND/OR OBLIGATIONS OF CUSTOMER WITHIN THE SERVICE CONDITIONS LISTED IN THIS PARAGRAPH 0. (SERVICE CONDITIONS) OF PART A OF THIS SCHEDULE.

PART B – SERVICE LEVELS

Definitions

The following words have these meanings in this Part B of this Schedule:

Business Day means the official working day in the country where this service is provided, excluding national public holiday.

Defer Time means cumulated time where the resolution of an Incident cannot progress due to events outside the responsibility of the Service (including local Customer contact being unavailable, Incident residing outside the scope of the Service, any Force Majeure Event).

Exclusions means in respect of each Service Level, the circumstances in which targets are not applicable, described as such in this Schedule.

Force Majeure Event means in relation to this schedule, an event which; (a) is beyond the reasonable control of the affected party and which the affected party cannot prevent or overcome, in each case as determined by the affected party acting reasonably; (b) prevents total or partial performance of the obligation(s) of the affected party, and (c) does not arise through the fault or negligence of the affected party. It includes any environmental conditions, vandalism, government action, strikes or lock-outs, war, terrorism, commercial power supply interruption, equipment failure when managed by Customer, failure or unavailability of telecommunications lines (including local access), third party interventions not under SITA control, and failure of any third party service provider.

Incident means an unplanned interruption to the Service(s) covered by this Schedule.

Incident Record means an occurrence of an Incident that is logged in the SITA ITSMS and acknowledged through the provision on an Incident reference number by SITA.

Maximum Service Availability Period means the maximum time the Service or a Service Element (as the case may be) is expected to be available during the Service Cover Period throughout the Measurement Period, after deducting Scheduled Downtime, Unscheduled Permitted Downtime, and time the Service was unavailable due to any Force Majeure Events and/or Exclusions.

Measurement Period means one calendar month.

Scheduled Downtime means scheduled downtime for the Service or the Service Element (as the case may be) for the purpose of SITA carrying out activities necessary for the proper operation of such Service or Service Element, such as: (a) software loads; (b) communication loads; (c) upgrades; (d) database re-organisation; (e) preventative maintenance; and (f) disaster recovery testing or upgrades.

Service has the same meaning as in Part A of this Schedule.

Service Availability means the calculated actual time, expressed as a percentage, for which the Service or a Service Element (as the case may be) is available during the Maximum Service Availability Period.

Service Availability Target means each Service Level, which is the proportion of the Maximum Service Availability Period, expressed as a percentage, representing the target time for which the Service or a Service Element (as the case may be) is available during the Maximum Service Availability Period. A sample calculation appears in paragraph 13.25.3 of this Part B of this Schedule.

Service Cover Period means the times during the day when the Service Levels shall apply to the Service or a Service Element (as the case may be). In the absence of contrary indication, Service Cover Periods are twenty-four hours a day, seven days a week.

Service Level means, in respect of a Service, any service level applicable to that Service, specified in this Schedule.

Service Element means a specific element of the Service to which a Service Level applies.

Unplanned Outage means an outage to a Service that results in a period of lack of Service availability, provided that such outage is not a Scheduled Downtime or Unscheduled Permitted Downtime.

Unscheduled Permitted Downtime means emergency Service outages or planned Service outage to perform emergency or urgent maintenance, which may include a maintenance windows or maintenance update for third party issued patches and updates for the Service (and supporting infrastructure if applicable), which may be a critical security patch update if it addresses an issue that may affect the operating environment of the Service.

Service Levels

13.25. Service Availability

13.25.1. Service Availability Service Level targets only apply to the availability of the following SITA hosted Service Element(s):

13.25.1.1. the API data exchange, including updating of WorldTracer.

13.25.2. Exclusions. Service Availability Service Level targets do not apply:

13.25.2.1. in the case of emergency (for example, in the case SITA suspends the Service due to security events or threats);

13.25.2.2. in the absence of an Incident Record issued by the SITA Service Desk (pro-actively or on report from Customer); and

13.25.2.3. the WiFi, LAN and Cellular connectivity to the API.

13.25.3. Service Availability is measured against the Expected Service Availability (i.e. excluding Scheduled Downtime). The table below contains a calculation (provided as an illustration only) of Expected Service Availability and Service Availability during one calendar month.

Example Expected Service Availability Calculation
A month based on 30 calendar days = 43200 minutes (for a Service Cover Period of 24 hours x 7 days a week
Scheduled Downtime = 60 minutes
Expected Service Availability = 43140 minutes
Unplanned Outages = 210 minutes
Service Availability = ((43140-210)/43140) * 100 = 99.5%

13.25.4. In each Measurement Period SITA reserves one Scheduled Downtime window of one hour, which will be notified to Customer at least one week in advance.

13.25.5. SITA will employ its reasonable endeavours to meet the Service Levels target for Service Availability set out in the following table:

Service Element	Service Cover Period	Service Availability target	Service Credits
API	24x7 (365 days)	99.5%	None

Service Levels Report

13.26. SITA shall use reasonable endeavours to deliver within 30 days from the end of each Measurement Period to Customer a report, which indicates the shortfalls in the Service Levels during that Measurement Period and any SCUs accrued to Customer (Service Levels Report).

13.27. The parties agree that all information contained in Service Level Reports is Confidential Information of SITA.

Exclusions

13.28. Service Levels do not apply to, and Service Availability Targets (and Service Availability calculations) shall not include, time the Service was not available due to any of the following Exclusions:

13.28.1. Scheduled Downtime, Unscheduled Permitted Downtime and Force Majeure Events;

13.28.2. failure or unavailability of telecommunications lines;

13.28.3. the absence of a necessary Incident report from Customer in accordance with the agreed incident reporting procedure provided during the Service acceptance;

13.28.4. the absence of the Customer providing Primary Checks information to the SITA Service Desk or where the Customer is not reachable in order to perform Primary Checks;

13.28.5. acts or omissions by the Customer or third parties (other than SITA's representatives);

13.28.6. Incident(s) caused by the Customer or its Third Parties; and

13.28.7. Customer's (or its Representatives') breach of any part of the Service Agreement.

Legal Terms

13.29. The Customer acknowledges and agrees that the Service Levels:

13.29.1. are not warranties or guarantees of performance standards;

13.29.2. do not create any obligations for results on SITA; and

13.29.3. if not met, shall not constitute a breach by SITA of any part of the Service Agreement.

13.30. The Customer acknowledges that the Services will not operate without interruption or error and that Unplanned Outages and circumstances or events described as Exclusions may occur and are to be expected. The Customer should not rely on the Services for critical operations or any operations needing time-critical data transit or resiliency without purchasing additional optional services to support such Services.

13.31. The Customer is responsible for:

13.31.1. satisfying itself as to the adequacy of the Services it has ordered for its operational needs, for example by analysing its relevant costs, benefits and needs, including in relation to other services available from SITA, and Customer's own insurance coverage for unanticipated events (considering SITA's limits of liability and service exclusions); and

13.31.2. anticipating and mitigating the effects of unavailability of the Services (for example, by way of back up manual processes and staff training).

13.32. If a party is unable to perform or is delayed in performing an obligation under this schedule because of a Force Majeure Event, then:

13.32.1. that obligation is suspended but only so far and for so long as it is affected by the Force Majeure Event; and

13.32.2. the party affected by the Force Majeure Event will not be liable for delay or failure to perform any of its obligations in this schedule.

13.33. If a Force Majeure Event occurs, the non-performing party must:

13.33.1. promptly give the other party notice of the event and an estimate of the non-performance and delay;

13.33.2. take all reasonable steps to overcome the effects of the event (but this does not require the settlement of industrial disputes or other claims on unreasonable terms); and

13.33.3. resume compliance as soon as practicable after the event no longer affects the party.

13.34. Neither party will have the right to claim or receive damages for any delay or non-performance of obligations by the other party resulting from a Force Majeure Event.

13.35. If a delay or failure to perform any party's obligations due to a Force Majeure Event exceeds 90 days, the party not affected by the Force Majeure Event may terminate the Service Agreement in whole or with respect to the affected Service only (as relevant) with notice to the other party.

13.36. EXCEPT TO THE EXTENT NOT PERMITTED AT LAW, SITA SHALL NOT BE LIABLE IN ANY EVENT FOR ANY ERRORS, FAULTS, DELAYS, DOWNTIME AND/OR UNAVAILABILITY ARISING OUT OF, OR CONNECTED IN ANY WAY TO, ANY OF THE EXCLUSIONS.

APPENDIX 1 – SITA DATA CENTER

Data Center
Frankfurt

End of Schedule

Schedule 2- Service Levels Schedule for WorldTracer

Version 140823

Definitions

The following words have these meanings in this Schedule:

Availability means the readiness for use, as designed, of Service platform infrastructure, during Operational Hours, with the following requirements:

- Reliability: Service platform infrastructure will operate without intermittent failures
- Support: Helpdesk contacts will be available on a 24/7 basis to assist the Customer Coordinator and designated Operations representatives with report and/or questions regarding service interruptions or outages.

Availability is measured during Operational Hours and over each calendar month.

Emergency Outage means any outage caused by factors outside of SITA's control that needs to be made immediately to solve operational or security emergencies or urgent problems.

Fault means any condition reported by the Customer that affected Service availability. Faults do not always cause an Unplanned Outage, nor are they necessarily considered a measurable standard towards this Service Level Agreement.

Maintenance Window means a period scheduled in advance during which SITA performs preventive maintenance or Planned Changes to the Service platform infrastructure.

Operational Hours means the hours of the day, specified in this schedule at paragraph 0, during which the Service Level shall apply.

Planned Changes mean System Changes that are scheduled in advance.

Service means the SITA service(s) specified in paragraph 0

Service Levels mean the service and performance standards are as detailed in paragraph 0.

System Changes mean modifications to the Service platform infrastructure. Implementation of a System Change may or may not involve an outage.

Users mean staff under the control of the Customer making use of the Service.

Unplanned Outage means a period during which there is a lack of Service platform infrastructure availability. Outages due to Planned Changes, Maintenance Windows or Emergency Outages are not Unplanned Outages.

Applicability of Schedule

This Schedule applies with regards to the following Service(s) when purchased by the Customer, as applicable:

- WorldTracer Desktop
- WorldTracer Web Services
- WorldTracer Tablet
- WorldTracer Self Service
- WorldTracer Baggage Delivery Service

This Schedule defines the minimum levels of service that SITA will provide to the Customer who has selected the benefit of this Schedule and has paid the applicable charges or premium.

Responsibilities

SITA shall:

- Operate the Service platform infrastructure as per the Service Levels provided in this Schedule;
- Proactively monitor the Availability of the Service;
- Provide a mechanism for Unplanned Outage and Fault reporting;
- Diagnose the causes of all Unplanned Outages;
- Resolve Unplanned Outages caused by SITA;
- If SITA is made aware of any problem that is affecting the Service but which is not caused by failure of any component of Service platform infrastructure, then SITA shall notify the appropriate party (ies) with the aim that such problems may be promptly resolved by the appropriate party(ies);
- Provide a means of escalation and where an Unplanned Outage exceeds, or is likely to exceed the period defined in the Service Level, notify the designated Customer contacts;
- Perform change management including:
    - Ensuring a mechanism exists for processing change requests;
    - Keeping and reporting a detailed record of every change including description, time and duration; to be made available to Customers upon request;
    - Ensuring Planned Changes and Maintenance Windows, which require a scheduled outage, are notified in advance to the Customer and are performed on communicated dates, so as to minimise any impact on the Customer's operations.

Customer shall, at no costs to SITA:

- Provide initial training to Users and be prepared to provide additional training should it become apparent that lack of training is contributing to levels of outages or problems;
- Supply SITA with the name and contact information for a designated Customer Service Coordinator and Operational/IT representative and inform SITA of any changes to those contact details.

The below exclusions shall apply for this Schedule:

SITA shall not be responsible for the correct functioning of the airline reservations, DCS (Departure Control System), Customer connectivity system(s) or any hardware, software or communication network that does not constitute part of the Service platform infrastructure.

The content of all files/records/messages is the responsibility of the Customer and Users and SITA shall not be responsible for the content of any such messages distributed by the Service. Any failure of the Customer baggage system to deal with messages shall not be the responsibility of SITA.

SITA shall not be responsible if the Service fails to meet performance norms set forth in this Schedule due to the failure of any hardware, software, systems or equipment over which SITA has no control; including any hardware, software, systems or equipment under the Customer's control.

Assumptions

The Customer must ensure that all Users adhere to the Customer responsibilities defined in this Schedule and Service user guides, manuals and instructions (as applicable). Failure to do so will mean that SITA cannot be held to the terms of this Schedule that are directly affected by that failure on the Customer's part or their Users' part.

Performance Levels

The following Performance Levels apply to the Service, excluding Planned Changes, Maintenance Windows and Emergency Outages:-

- Service platform infrastructure availability is 99.80%, to be measured on a 24/7/365 basis over each calendar month.

- In the event of an Unplanned Outage, the Service shall be restored within fifteen minutes 90% of the time, and within 45 minutes 100% of the time, from the time when such failure is brought to the attention of SITA, either by the Customer or by the systems that manage the Service.

Performance Review

If the same defect or problem causes Service platform infrastructure availability to fall below 95% (measured on a 24/7/365 basis) in two consecutive months then SITA must propose a plan for meeting the service level, with effect from the third month and circulate the plan to the Customer.

Support

WorldTracer Support Desk coverage:

- Level 1 – SITA Support Desk - 24x7x365 availability
- Level 2 – Baggage Practice (London) – Mon to Fri; 9am – 5pm GMT (on call during off hours)
- Level 3 – WorldTracer Support
    - Atlanta - Mon to Fri; 9am – 5pm EST (on call during off hours)
    - London - Mon to Fri; 9am – 5.30pm GMT (on call during off hours)

Review

This Schedule will be reviewed following any changes made by SITA to the design or delivery of the Service.

End of Schedule

Schedule 3 - Pricing Schedule for SITA WorldTracer Bag Delivery Service (INTERFACE)

Version 010126

1 Definitions

1.1 Capitalised terms used in this Schedule and not specifically defined in this Schedule, shall have the same meanings as may be ascribed to them in the General Terms or the relevant Service Schedule(s).

1.2 The following words have these meanings in this Schedule:

Cutover means, in respect of a Service, the operation by which such Service is made operational and available for use by Customer.

OD means Date Bag Confirmed Delivery element, which records the date and time the bag was confirmed for delivery.

Usage means, in respect of a Service, an update of the OD element in the WorldTracer file through the Service, by Customer.

2 Charges

WorldTracer Bag Delivery Service (INTERFACE)		**Selection (x)**	**Charge (USD)**
One-time	Implementation Fee[1]	☐	$1,246.00
Monthly	Maintenance Fee[2]		$122.00
Monthly	Certificate Fee[2]		$31.00
Volumes per month	**USAGE** - number of bags delivered[3]		**PER BAG**
	1-1,499 bags		$0.283
	1,500-2,999 bags		$0.251
	3,000-7,499 bags		$0.240
	7,500-14,999 bags		$0.207
	15,000-29,999 bags		$0.186
	30,000+ bags		$0.174

1. Following the Effective Date of this Service Agreement SITA shall invoice, and Customer shall pay to SITA the one-time charges as shown in table above.
2. SITA shall invoice and Customer shall pay to SITA the monthly service charges as shown in the table above from the first day of the month following Cutover of the Service.
3. SITA shall invoice and Customer shall pay to SITA the usage charges shown in the table above.

End of Schedule